

**El Paso County
Delia Briones
County Clerk**

Instrument Number: 00000000025

ma.mendez

Recorded On: 2/24/2026 10:35:27 AM

Number of Pages: 1

Examined and Charged as Follows:

Total Recording: 36.00

*****THIS PAGE IS PART OF THE INSTRUMENT*****

Any provision herein which restricts the Sale, Rental or use of the described REAL PROPERTY
because of color or race is invalid and unenforceable under federal law.

File Information

Document Number	00000000025
Receipt Number	1956100
Recorded Date/Time:	2/24/2026 10:35:27 AM
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State of Texas
COUNTY OF EL PASO

I hereby certify that this instrument was FILED in the File Number sequence on the date/time printed hereon,
and was duly RECORDED in the Official Record of El Paso County, Texas.

Delia Briones
County Clerk
El Paso County, TX

NOTICE OF ACCELERATION AND NOTICE OF TRUSTEE'S SALE

Assert and protect your rights as a member of the armed forces of the United States. If you are or your spouse is serving on active military duty, including active military duty as a member of the Texas National Guard or the National Guard of another state or as a member of a reserve component of the armed forces of the United States, please send written notice of the active duty military service to the sender of this notice immediately.

DEED OF TRUST INFORMATION:

Date: **March 17, 2020**

Grantor(s): **DANIEL HERNANDEZ AND MARIVEL CONTRERAS, HUSBAND AND WIFE**

Original Mortgagee: **MORTGAGE ELECTRONIC REGISTRATION SYSTEMS, INC., AS NOMINEE FOR BROKER SOLUTIONS, INC. DBA NEW AMERICAN FUNDING**

Original Principal: **\$98,188.00**

Recording Information: **20200023628**

Property County: **El Paso**

Property: **EXHIBIT "A":**

LOT 2, SAVE AND EXCEPT A PORTION THEREOF AND A PORTION OF LOT 3, BLOCK 16, TOBIN PARK ADDITION (UNIT TWO), AN ADDITION TO THE CITY OF EL PASO, EL PASO COUNTY, TEXAS, ACCORDING TO THE PLAT THEREOF RECORDED IN VOLUME 2, PAGE 5, PLAT RECORDS OF EL PASO COUNTY, TEXAS, AND BEING MORE PARTICULARLY DESCRIBED BY METES AND BOUNDS IN EXHIBIT "B", ATTACHED HERETO AND MADE A PART HEREOF FOR ALL PURPOSES INTENDED.

EXHIBIT "B":

PART OF LOTS TWO (2) AND THREE (3), BLOCK SIXTEEN (16), TOBIN PARK ADDITION, UNIT 2, EL PASO COUNTY, TEXAS, AS FORMERLY FILED AND RECORDED IN THE FRONT OF VOLUME 763 OF THE DEED RECORDS OF EL PASO COUNTY, TEXAS, NOW ON FILE IN VOLUME 2, PAGE 5, OF THE PLAT RECORDS, EL PASO COUNTY, TEXAS, NOW ON FILE IN VOLUME 2, PAGE 5, OF THE PLAT RECORDS, EL PASO COUNTY, TEXAS, AND BEING ALL OF LOT 2, BLOCK 16, TOBIN PARK ADDITION, UNIT 2, SAVE AND EXCEPT THE FOLLOWING PORTION BEING MORE PARTICULARLY DESCRIBED BY METES AND BOUNDS AS FOLLOWS, TO-WIT: BEGINNING AT THE COMMON FRONT CORNER OF LOT 1 AND LOT 2, BLOCK 16; THENCE 88° 49' W A DISTANCE OF 1.40 FEET; THENCE S 0° 01.2' W A DISTANCE OF 100.02 FEET; THENCE N 88° 49' E A DISTANCE OF 3.50 FEET; THENCE N 01° 11' W A DISTANCE OF 100.00 FEET, TO THE POINT OF BEGINNING, PLUS A PORTION OF LOT 3, BLOCK 16, BEING MORE PARTICULARLY DESCRIBED BY METES AND BOUNDS AS FOLLOWS, TO-WIT: BEGINNING AT THE COMMON FRONT CORNER OF LOT 2 AND LOT 3, BLOCK 16, THENCE S 88° 49' W A DISTANCE OF 1.40 FEET; THENCE S 0° 01.2' W A DISTANCE OF 100.02 FEET, THENCE N 88° 49' E A DISTANCE OF 3.50 FEET; THENCE N 01° 11' W A DISTANCE OF 100.00 FEET, TO THE POINT OF BEGINNING IN ACCORDANCE TO A SURVEY BY GILBERT B. CARTER DATED

1. The maturity of the Note is hereby accelerated, and all sums secured by the Deed of Trust are declared to be immediately due and payable.
2. The herein appointed Substitute Trustees, any to act, as Substitute Trustee will sell the Property to the highest bidder for cash on the date, at the place, and no earlier than the time set forth above in the Sale Information section of this notice. The sale will begin within three hours after that time.
3. This sale shall be subject to any legal impediments to the sale of the Property to any exceptions referenced in the Deed of Trust or appearing of record to the extent the same are still in effect and shall not cover any property that has been released from the lien imposed by the Deed of Trust.
4. No warranties, express or implied, including but not limited to the implied warranties of merchantability and fitness for the particular purpose shall be conveyed at the sale, save and except the Grantor's warranties specifically authorized by the Grantor in the Deed of Trust. The property shall be sold "AS-IS", purchaser's will buy the property "at the purchaser's own risk" and "at his peril" and no representation is made concerning the quality or nature of title to be acquired. Purchasers will receive whatever interest Grantor and Grantor's assigns have in the property, subject to any liens or interest of any kind that may survive the sale. Interested persons are encouraged to consult counsel of their choice prior to participating in the sale of the property.
5. If the sale is set aside for any reason, the Purchaser at the sale shall be entitled only to a return of the funds paid. The Purchaser shall have no further recourse against the Mortgagor, the Mortgagee, the Mortgagee's Attorney, or the duly appointed Substitute Trustee.

P Jones

Michael J. Burns / Paige Jones/ Gabrielle A. Davis/ Ronny George

Beverly Mitishin

Beverly Mitishin

CERTIFICATE OF POSTING

My name is _____, and my address is c/o Padgett Law Group, 546 Silicon Dr., Suite 103, Southlake, TX 76092. I declare under penalty of perjury that on _____, I filed at the office of the El Paso County Clerk to be posted at the El Paso County courthouse this notice of sale.

Declarant's Name: _____

Date: _____

Padgett Law Group
546 Silicon Dr., Suite 103, Southlake, TX 76092
(850) 422-2520

WITNESS MY HAND this _____ day of _____, _____.

NOVEMBER 24, 1958.

Property Address: **5318 Raymond Telles Drive
El Paso, TX 79924**

MORTGAGE SERVICING INFORMATION:

The Mortgage Servicer, if not the Current Mortgagee, is representing the Current Mortgagee pursuant to a Mortgage Servicing Agreement.

Current Mortgagee: **New American Funding, LLC**
Mortgage Servicer: **New American Funding**
Mortgage Servicer Address: **8201 North FM 620
Suite 120
Austin, TX 78726**

SALE INFORMATION:

Date of Sale: **May 5, 2026**
Time of Sale: **10:00 AM or within three hours thereafter.**
Place of Sale: **At the El Paso County Coliseum, 4100 E Paisano Dr., El Paso, TX 79905, or if the preceding area is no longer the designated area, at the area most recently designated by the County Commissioner's Court.**
Substitute Trustee: **Beverly Mitrisin, and Padgett Law Group, any to act**
Substitute Trustee Address: **546 Silicon Dr., Suite 103
Southlake, TX 76092**

APPOINTMENT OF SUBSTITUTE TRUSTEE:

THIS INSTRUMENT APPOINTS THE SUBSTITUTE TRUSTEE(S) IDENTIFIED TO SELL THE PROPERTY DESCRIBED IN THE SECURITY INSTRUMENT IDENTIFIED IN THIS NOTICE OF SALE THE PERSON SIGNING THIS NOTICE IS THE ATTORNEY OR AUTHORIZED AGENT OF THE MORTGAGEE OR MORTGAGE SERVICER.

The undersigned is the attorney for the mortgagee and/or mortgage servicer, and in such capacity does hereby remove the original trustee and all successor substitute trustees under the above-described Deed of Trust and appoints in their place, any to act, those substitute trustees identified in the SALE INFORMATION section of this notice, whose address is c/o Padgett Law Group, 546 Silicon Dr., Suite 103, Southlake, TX 76092 as Substitute Trustee, who shall hereafter exercise all powers and duties to set aside the said original trustee under said Deed of Trust, and further does hereby request, authorize, and instruct said Substitute Trustees to conduct and direct the execution of remedies set aside to the beneficiary therein.

WHEREAS, the above-named Grantor(s) previously conveyed the above described property in trust to secure payment of the Note set forth in the above-described Deed of Trust; and

WHEREAS, a default under the Note and Deed of Trust was declared, such default was reported to not have been cured, and all sums secured by such Deed of Trust are declared immediately due and payable.

WHEREAS, the original Trustee and any previously appointed Substitute Trustee under said Deed of Trust has been hereby removed and the herein described Substitute Trustees, have been appointed as Substitute Trustees and authorized by the Mortgage Servicer to enforce the power of sale granted in the Deed of Trust; and

WHEREAS, the undersigned law firm has been requested to provide these notices on behalf of the Current Mortgagee, Mortgage Servicer and Substitute Trustees;

NOW, THEREFORE, NOTICE IS HEREBY GIVEN of the foregoing matters and that: